<u>Tentative Rulings for August 6, 2026</u>
<u>Department 503</u>

<u>For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)</u>

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) ***The above rule also applies to cases listed in this "must appear" section.***

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG04061 ***Navarro v. Jacobo Farm Services, Inc*. is continued to Thursday, August 27, 2026, at 3:30 p.m. in Department 503.**

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<u>Tentative Rulings for Department 503</u>

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(46)

Tentative Ruling

Re: ***Alba Hudson v. Keith Hudson***
Superior Court Case No. 23CECG04453

Hearing Date: August 6, 2026 (Dept. 503)

Motion: by Defendant Keith Monroe Hudson for Terminating Sanctions

Tentative Ruling:

To grant Defendant Keith Monroe Hudson's motion for terminating sanctions, as to the complaint filed by Plaintiff Alba Rosa Hudson on October 25, 2023. (Code Civ. Proc., § 2023.030, subd. (d).) The trial date set for January 25, 2027 is vacated, as are the dates for the Trial Readiness Conference and Mandatory Settlement Conference.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 503.

Explanation:

Defendant Keith Monroe Hudson ("Defendant") moves for terminating sanctions as a result of Plaintiff Alba Rosa Hudson's ("Plaintiff") violation of the discovery order issued on December 2, 2025. Defendant submits that Plaintiff willfully failed to pay the imposed monetary sanctions, and failed to provide the ordered responses to discovery.

Code of Civil Procedure section 2023.010, subdivision (g) makes "[d]isobeying a court order to provide discovery" a "misuse of the discovery process," but sanctions are only authorized to the extent permitted by each discovery procedure. Sanctions for failure to comply with a court order are allowed only where the failure was willful. (*Biles v. Exxon Mobil Corp.* (2004) 124 Cal.App.4th 1315, 1327.) If there has been a willful failure to comply with a discovery order, the court may strike out the offending party's pleadings or parts thereof, stay further proceedings by that party until the order is obeyed, dismiss that party's action, or render default judgment against that party. (Code Civ. Proc. § 2023.030, subd. (d).)

Plaintiff has failed to pay court-ordered monetary sanctions. (Armas Decl., ¶ 11.) Generally, no terminating sanctions will be ordered for failure to pay monetary sanctions. Sanctions should not constitute a "windfall" to the requesting party, giving the moving party more than would have been obtained had the discovery been answered. (*Caryl Richards, Inc. v. Superior Court In and For Los Angeles County* (1961) Cal.App.2d 300, 305.) Terminating sanctions for a party's nonpayment of the monetary sanctions would constitute a windfall to the moving party, which is not the goal of discovery sanctions. (*Caryl Richards, Inc. v. Superior Court In and For Los Angeles County, supra,* 188 Cal.App.2d at p. 302; *Rutledge v. Hewlett-Packard Company* (2015) 238 Cal.App.4th 1164, 1194.) Orders for monetary sanctions are enforceable as money judgments.

If a party fails to obey an order compelling answers or response, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction[.]" (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) "The court may impose a terminating sanction by […] An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process[,] … [or] An order dismissing the action, or any part of the action, of that party." (*Id*., § 2023.030, subd. (d).)

On December 2, 2025, the court ordered Plaintiff to serve verified, objection-free responses to Defendant's propounded Special Interrogatories, Set Two, and Request for Production of Documents, Set Two. (Armas Decl., ¶ 8.) To date, Plaintiff has failed to provide any responses to the propounded discovery. (*Id*., ¶ 11.) Defendant submits that Plaintiff's failure to engage in the discovery process has been willful, as ample time has passed for Plaintiff to comply and she has not done so, nor has she participated in Defendant's attempts to meet and confer regarding the issue. (*Id*., ¶¶ 12, 14.) Additionally, plaintiff has failed to oppose this motion.

Eight months have now passed since the court's order, and responses have not been served. It appears that Plaintiff is willfully refusing to comply with the court's order compelling her to answer the discovery requests. It does not appear likely that any lesser sanctions would be effective to obtain compliance, as Plaintiff is failing to demonstrate an interest in responding to discovery or otherwise participating in the action. Accordingly, the court intends to grant the motion for terminating sanctions.[1]

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: JS on 8/4/2026.
(Judge's initials) (Date)

[1] The Proposed Order includes a section for ordering Plaintiff to pay additional monetary sanctions. However, Defendant makes no formal request for additional monetary sanctions in either the Notice or the Motion. Counsel briefly provides his billable hours and hourly rate in his Declaration. As no request for monetary sanctions was made, nor noticed to the opposing party, the court will not be imposing additional monetary sanctions.

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<u>Tentative Ruling</u>

Re: ***Jeronimo v. Swanson-Fahrney Ford Sales***
Superior Court Case No. 25CECG02433

Hearing Date: August 6, 2026 (Dept. 503)

Motion: by Defendant to Compel Arbitration

Tentative Ruling:

To grant the motion to compel arbitration and to stay proceedings pending the arbitration of plaintiff's claims against Swanson-Fahrney Ford Sales. To stay the court action pending the arbitration of plaintiff's claims.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 503.

Explanation:

Plaintiff contracted to purchase a vehicle from defendant Swanson-Fahrney Ford Sales on credit. (Fahrney Decl., ¶¶ 3-4, Exh. A; Complaint, ¶ 6.) Problems with the performance of the vehicle arose and were unable to be repaired. On May 21, 2025, plaintiff filed his Complaint alleging causes of action for Violations of the Song-Beverly Consumer Warranty Act. Defendant now moves the court to compel arbitration of plaintiff's claims pursuant to the arbitration provision of the Retail Installment Sale Contract ("RISC").

With a motion to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The party opposing the motion must then prove by a preponderance of evidence that a ground for denial of the motion exists (e.g., fraud, unconscionability, etc.). (*Rosenthal v. Great Western Fin'l Securities Corp.* (1996) 14 Cal.4th 394, 413-414; *Hotels Nevada v. L.A. Pacific Ctr., Inc.* (2006) 144 Cal.App.4th 754, 758; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) There is a strong public policy in favor of arbitration agreements and "doubts concerning the scope of arbitrable issues are to be resolved in favor of arbitration." (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1278 (*quoting Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak Street* (1983) 35 Cal.3d 312, 323).)

In the case at bench, there is no dispute as to whether the arbitration agreement exists or whether the dispute is covered by the agreement. Rather the plaintiff argues the motion should be denied pursuant to Code of Civil Procedure section 1281.97 and that defendant has waived the right to compel arbitration.

<u>Code of Civil Procedure § 1281.97</u>

Code of Civil Procedure section 1281.97 provides, in pertinent part:

> In an employment or consumer arbitration that requires, either expressly or through application of state or federal law or the rules of the arbitration provider, the drafting party to pay certain fees and costs before the arbitration can proceed, if the fees or costs to initiate an arbitration proceeding are not paid within 30 days after the due date the drafting party is in material breach of the arbitration agreement, is in default of the arbitration, and waives its right to compel arbitration under Section 1281.2.

On November 10, 2025, plaintiff initiated arbitration pursuant to the RISC with AAA and was assigned a case number. (Chavez Decl., ¶ 4.) On December 5, 2025, AAA declined to administer the arbitration, advising that before plaintiff filed the arbitration defendant was not in compliance with AAA policies regarding consumer claims. (*Id*., ¶ 6.) Plaintiff later learned defendant was not in good standing with AAA because it had not paid a 2025 renewal fee. (*Ibid*.)

Here, the fee at issue, to register defendant's arbitration clause for 2025, was not a fee to initiate the arbitration proceeding as contemplated by the statute. Further, defendant was not given an opportunity to pay an invoice or 30 days to pay before administration of the arbitration was summarily declined. The circumstances do not support finding the drafting party in breach of the arbitration agreement under Code of Civil Procedure section 1281.97.

<u>*Waiver*</u>

Waiver is the "intentional relinquishment or abandonment of a known right." (*Morgan v. Sundance, Inc*. (2022) 596 U.S. 411, 417, quoting *United States v. Olano* (1993) 507 U.S. 725, 733.) When considering whether waiver has occurred, the United States Supreme Court has noted the focus is on the actions of the party who held a right. (*Ibid*.) In its ruling in *Morgan*, the Supreme Court has clarified that prejudice is not a requirement when considering the federal rule of waiver in the arbitration context. (*Id*. at p. 1714.) State and federal law both have a policy of favoring arbitration agreements and doubts regarding whether a waiver has occurred are to be resolved in favor of arbitration. (*St. Agnes Medical Center v. PacifiCare of California* (2003) 31 Cal.4th 1187, 1195.)

When determining whether a party holding the right to arbitrate has waived said right, the courts consider, 1) whether the party's actions are inconsistent with that right, 2) how far along the parties are in litigation before notice of an intent to arbitrate, 3) any delays in seeking arbitration, 4) whether the party seeking arbitration has filed a counterclaim, and 5) whether important intervening steps have occurred.[2] (*St. Agnes Medical Center v. PacifiCare of California, supra*, 31 Cal.4th at p. 1196.)

Plaintiff argues that defendant has acted inconsistently with the right to arbitrate because it did not timely enter into a stipulation to stay this action pending arbitration when offered, failed to cure the defects with AAA, and only through its most recent Case

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[2] California case law also has included whether the other party was prejudiced, but as noted in *Morgan*, there should be no prejudice requirement when considering waiver in an arbitration context.

Management Conference Statement offered NAM as an alternative arbitration administration. Plaintiff argues these actions demonstrate defendant has failed to pursue the timely arbitration of plaintiff's claims.

The court does not find that the delay in moving for arbitration, due in part to plaintiff's submission of the dispute to AAA, adequately evinces the intention to relinquish the right to compel arbitration or to abandon it. (*Hofer v. Boladian* (2025) 111 Cal.App.5th 1, 10.)

Plaintiff has not met his burden to demonstrate a waiver of the right to compel arbitration.

Accordingly, the court intends to enforce the arbitration provision within the RISC and compel the plaintiff to arbitrate his claims against defendant Swanson-Fahrney Ford Sales.

Defendant requests the court order arbitration to proceed with AAA. The language of the agreement allows arbitration to proceed with AAA or National Arbitration and Mediation, or if the parties agree, a different arbitration organization. There is no "default" to AAA. The court anticipates the parties will comply with the language of the arbitration agreement in determining where the proceed with arbitration.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: JS on 8/4/2026 .
(Judge's initials) (Date)

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<u>Tentative Ruling</u>

Re: ***Olmos v. Volkswagen Group of America, Inc., et al.***
Superior Court Case No. 25CECG03383

Hearing Date: August 6, 2026 (Dept. 503)

Motion: By Defendant CLVW, LLC for Judgment on the Pleadings

Tentative Ruling:

To grant defendant CLVW, LLC's motion for judgment on the pleadings to the fourth cause of action, with leave to amend. (Code Civ. Proc., § 438.)

Plaintiff is granted 30 days' leave to file an amended complaint, which will run from service by the clerk of the minute order. New allegations/language must be set in **boldface** type.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 503.

Explanation:

<u>*Motion for Judgment on the Pleadings*</u>

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired, and so the rules governing demurrers apply. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.)

As in demurrers, grounds for the motion must appear on the face of the challenged pleading or on facts which the court may judicially notice. (*Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Code Civ. Proc., § 438, subd. (d).)

When reviewing a pleading, a demurrer or motion for judgment on the pleadings admits the truth of all material allegations and a Court will "give the complaint a reasonable interpretation by reading it as a whole and all its parts in their context." (*People ex re. Lungren v. Superior Court* (1996) 14 Cal.4th 294, 300.) The standard of pleading is very liberal and a plaintiff need only plead "ultimate facts." (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) However, a plaintiff must still plead facts giving some indication of the nature, source, and extent of the cause of action. (*Semole v. Sansoucie* (1972) 28 Cal.App.3d 714, 719.)

In the case at bench, defendant CLVW, LLC, doing business as Volkswagen of Clovis ("Defendant") brings this motion for judgment on the pleadings with regard to the fourth cause of action for negligent repair on the basis that the Complaint does not allege sufficient facts to state a cause of action.

<u>Economic Loss Rule</u>

Defendant moves for judgment on the pleadings on the grounds that recovery under the Fourth Cause of Action for negligent repair is barred by the economic loss rule.

The economic loss rule bars recovery in tort for economic damages caused by defective product, unless those losses are accompanied by some form of personal injury or damage to property other than the product itself. (*KB Home v. Superior Court (*2003) 112 Cal.App.4th 1076, 1085.) Economic loss consists of damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) The economic loss rule applies where a complaint fails to allege "harm above and beyond a broken contractual promise." (*Ibid*.)

Here, the Complaint seeks only economic losses. Namely, the Complaint alleges damages by way of a defective vehicle due to, for example, engine coolant leaking and related error codes. These are damages arising out of a defective product or a type of repair that constitute economic loss. The Complaint does not state that Plaintiff has sustained personal injury or damage to other property as a result of Defendant's alleged breach. As such, the economic loss rule applies, and damages in tort are barred. No opposition was filed to suggest otherwise.

The motion for judgment on the pleadings of the fourth cause of action is granted as Plaintiff failed to state facts sufficient to constitute a cause of action against Defendant. Plaintiff is granted leave to amend the Complaint as it may be possible to allege damages that give rise to an exception to the economic loss rule.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: JS on 8/4/2026.
(Judge's initials) (Date)